

11	Langmuir-Logan vs. Sanders 2024-01375066	1. Motion for Attorney Fees Defendant Benjamin Berger motion for attorneys’ fees is GRANTED in the reduced amount of \$20,280. Defendant Berger seeks an award attorneys' fees against Plaintiffs in an amount of \$29,120 as the prevailing party pursuant to California's anti-SLAPP statute, Code of Civil Procedure section 425.16(c). Plaintiffs acknowledge that Defendant Berger was the prevailing parties in his anti-SLAPP motion. (See Opp, p. 2:8-10.) Nevertheless, Plaintiffs contend Defendant’s motion for attorney’s fees should be denied in its entirety because of Defendant’s misconduct. According to Plaintiffs, Defendant used the MSC for the sole purpose of establishing the value of Defendant Sanders’ claims so that Sanders could effectuate the sale of the claims to Defendant Collins. On this basis, Plaintiffs argue Defendant acted in bad faith in the furtherance of an unrelated commercial enterprise and, therefore, the Court should not reward Defendant for his malfeasance and duplicity related to the MSC and should deny this motion in its entirety. However, these are the same actions and conduct Plaintiffs allege in their complaint, which was the subject of Defendant’s anti-SLAPP motion. In ruling on that motion, the Court has already determined that all of Defendant’s conduct was protected litigation activity. Additionally, Plaintiffs fail to present any evidence of any misconduct or bad faith. Absent such evidence and in light of the Court’s prior ruling granting the anti-SLAPP motion, there is no basis upon which to find Defendant engaged in any misconduct or bad faith. The “prevailing defendant” on a special motion to strike “shall be entitled” to recover his or her attorney fees and costs. (Code Civ. Proc. § 425.16(c).) Thus, subject to certain exceptions, an award of attorney’s fees to a prevailing defendant is mandatory. (<i>Moore v. Kaufman</i> (2010) 189 Cal.App.4th 604, 614.) Further, the fee award is against the losing plaintiff, not the losing plaintiff’s attorney. (<i>Ibid.</i>) “[A]n award of fees may include not only the fees incurred with respect to the underlying claim, but also the fees incurred in enforcing the right to mandatory fees under Code of Civil Procedure section 425.16. ... [A]bsent circumstances rendering the award unjust, fees recoverable ... ordinarily include compensation for all hours reasonably spent, including those necessary to establish
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and defend the fee claim.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1141.) The anti-SLAPP statute also permits recovery of costs and fees on an appeal from the court's ruling on an anti-SLAPP motion. (*Evans v. Unkow* (1995) 38 Cal.App.4th 1490, 1499-1500.)

The trial court retains jurisdiction to entertain a motion for attorney fees even if a party appeal of the court’s ruling on the anti-SLAPP motion. (*Carpenter v. Jack In The Box Corp.* (2007) 151 Cal.App.4th 454, 461.)

“Code of Civil Procedure section 425.16 permits the use of the so-called lodestar adjustment method under our long-standing precedents, beginning with *Serrano v. Priest* (1977) 20 Cal.3d 25.” (*Ketchum, supra*, 24 Cal.4th at 1131.) Under this approach, a base amount is calculated from a compilation of time reasonably spent and reasonable hourly compensation of each attorney. (*Graham v. DaimlerChrysler Corp.* (2004) 34 Cal.4th 553, 579.)

Hourly Rate

Defendant is represented by Erik McLain of McLain Firm, P.C., whose hourly rate is \$650. (McLain Decl., ¶¶ 1, 5.) Plaintiffs do not dispute the reasonableness of this rate.

Number of Hours Reasonably Worked on the Matter

“[A]n award of attorney fees may be based on counsel's declarations, without production of detailed time records.” (*Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1375.) “[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (*Horsford v. Bd. Of Trustees Of California State Univ.* (2005) 132 Cal. App. 4th 359, 396.) When a party challenges the reasonableness of the number of hours billed, it has the burden “to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (*Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564). “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (*Ibid.*)

Defendant contends the hours his counsel billed for Defendant’s anti-SLAPP motion are as follows:

Description	Hours	Total
Time spent through the filing of this motion	39.30	\$25,545.00
Time to be spent further litigating this motion	5.50	\$3,575.00
Total	44.80	\$29,120.00

(McLain Decl., ¶5, Exs. A, B.)

Plaintiffs dispute the following billing entries totaling 13.6 attorney hours in the amount of \$8,840 as unreasonable because they do not relate to Defendant's anti-SLAPP motion:

- 1.8 hours on February 26, 2024, conferring with Defendant Berger about the complaint, reviewing the complaint, and exchanging emails regarding the scope and terms of representation;
- 2.1 hours on February 27, 2024, discussing the related lawsuits with Defendant Berger and again reviewing the complaint;
- 0.3 hours on February 28, 2024, communicating with Defendant Berger about representing the other Defendants and about a possible joint defense agreement;
- 4 hours on March 5, 2024, for an in-person meeting with Defendant Berger to discuss the case and review documentation regarding the Mandatory Settlement Conference in the underlying matter;
- 1.5 hours on March 12, 2024, exchanging text messages and conferring with attorney Dan Harrison about an "apparent division among EL/FL and who is likely directing" Plaintiffs' counsel and about representations made by Plaintiffs' former counsel;
- 0.1 hours on March 12, 2024, sending a text message and leaving a voicemail for Defendant Berger about his discussion with Mr. Harrison;
- 0.8 how-son March 13, 2024, exchanging text messages with Defendant Berger and reviewing screen shots of messages from Plaintiffs ' former counsel allegedly confirming no settlement had been reached;

	• hours on March 21 , 2024, for a meeting with the Defendant discussing the merits of Plaintiffs' fraud claim and a joint defense agreement; and, • hours on April 12, 2024, discussing affirmative defenses with Defendant Berger, drafting the answer to the complaint, and exchanging emails with Nancy Davis about the answer. Plaintiffs are correct. “[T]he anti-SLAPP statute's fee provision applies only to the motion to strike, and not to the entire action.” (<i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1325.) In <i>Christian Research Institute</i>, the complaint contained only one cause of action for defamation. (<i>Id.</i> at 1319.) As the court explained: Alnor contends the trial court “had no reasonable basis for disregarding counsel[']s time records.” It is well-established, however, that the anti-SLAPP statute's fee provision “ ‘applies only to the motion to strike, and not to the entire action.’ ” (<i>Berti, supra</i>, 39 Cal.4th at p. 381, 46 Cal.Rptr.3d 380, 138 P.3d 713; <i>Lafayette Morehouse, supra</i>, 39 Cal.App.4th at p. 1383, 46 Cal.Rptr.2d 542.) Nevertheless, counsel inflated the fee claim with a multitude of time entries devoted to matters other than the motion to strike, thereby undermining the credibility of counsel's other entries. For example, counsel sought reimbursement for non-anti-SLAPP efforts such as attacking service of process, preparing and revising an answer to the complaint, summary judgment research, a senior associate's “[w]ork on [a] press release,” and a conference “regarding the appropriate way to address opposing counsel and the client.” The record suggests Alnor sought to transfer to the opposing parties the cost of every minute counsel expended on the case, whether or not anti-SLAPP work was involved. The fee request included, for example, billings for obtaining the docket at the inception of the case, obtaining unspecified but “numerous court documents,” and attending the trial court's mandatory case management conference—all of which would have been incurred whether or not Alnor filed the motion to
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		strike. Indeed, counsel even sought reimbursement for drafting the client retention agreement, which does not appear to have been limited to anti-SLAPP measures given the hours counsel billed for other work. Counsel's willingness to flout the statutory restriction on the scope of anti-SLAPP fee claims justified the trial court in taking a jaundiced view of the fee request. (<i>Christian Research Institute, supra</i>, 165 Cal.App.4th at 1324-25.) Here, the billing entries identified by Plaintiff do not relate to Defendant Berger's anti-SLAPP motion. The entries therefore are unreasonable. Defendant has not filed a reply contending otherwise. By failing to argue the contrary effectively concedes this issue. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566.) Accordingly, the amount awarded will be reduced by \$8,840.00 (13.6 hours x \$650/hour rate). Therefore, the motion is GRANTED in the amount of \$20,280 (\$29,120.00- \$8,840).
12	Somers vs. FCA US LLC 2023-01352879	1. Motion for Attorney Fees Plaintiff Peter Raymond Somers's Motion for Attorney Fees For Time Actually Expended and Reasonably Incurred is GRANTED in the reduced amount of \$32,307.61 for total attorney fees and costs. This case settled on 8/12/24 after mediation. On 8/13/24, Plaintiff filed a notice of conditional settlement. Thereafter, the parties were unable to privately agree on the reasonable attorney fees and costs. As a result, Plaintiff filed the instant motion and a memorandum of costs on 12/9/24. Plaintiff seeks a total amount of \$37,312.81 (i.e., attorney fees in the amount of \$35,101.50 and costs in the amount of \$2,211.31). There is no dispute between the parties that Plaintiff is entitled to fees and costs/expenses. The issue in dispute is the amount of attorney fees. Defendant argues Plaintiff should recover no more than \$19,861.78 in fees and does not oppose the requested costs. If a plaintiff prevails in a Song-Beverly action, they "shall be allowed by the court to recover as part of the judgment a sum